



CHAPTER lxxix.

An Act for authorising the Mid Kent Water Company to construct new waterworks for conferring further powers upon the Company and for other purposes. A.D. 1923.
[31st July 1923.]

WHEREAS the Mid Kent Water Company (in this Act called "the Company") were incorporated by the Mid Kent Water Act 1898 (in this Act called "the Act of 1898") and by the Mid Kent Water Acts 1898 to 1913 were empowered to construct works and to supply water within the limits thereby prescribed:

And whereas by the Mid Kent and East Kent District Water Act 1913 (in this Act referred to as "the Act of 1913") the Company were (inter alia) authorised to construct additional waterworks of which certain works (in that Act and in this Act referred to as "the joint works") are intended to afford a supply of water for the use of the inhabitants of places within the limits of supply of the East Kent District Water Company (in this Act referred to as "the East Kent Company") as well as for the inhabitants within the limits of supply of the Company and provision was therefore made by the Act of 1913 for the joint construction ownership and user of the joint works by the Company and the East Kent Company:

And whereas owing to the conditions which have prevailed since the passing of the Act of 1913 it has been impracticable to proceed with the construction of certain of the additional waterworks authorised by that Act including the joint works:

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And whereas by the Mid Kent Water Order 1920 (in this Act called “ the Order of 1920 ”) the time limited by the Act of 1913 for the completion of the works by that Act authorised to be constructed by the Company was extended until the fifteenth day of August one thousand nine hundred and twenty-six and it is expedient that the time for the completion of such of the said works as have not been completed should be further extended as by this Act provided :

And whereas the demand for water in the limits of supply of the Company and more particularly in the western part of such limits has increased and is still increasing and for the better and more effectually enabling the Company to meet such increasing demand it is expedient that the Company should be empowered to make and maintain the new waterworks and to acquire the lands hereinafter respectively described :

And whereas the capital which the Company are by the Mid Kent Water Acts and Orders 1898 to 1920 authorised to raise by the issue of shares or stock amounts to three hundred and eighty thousand pounds and the Company are by the said Acts authorised to borrow on mortgage or to raise by the issue of debenture stock a total sum of ninety-four thousand seven hundred and fifty pounds :

And whereas the Company have raised capital to the extent of two hundred and sixty-eight thousand one hundred and four pounds seventeen shillings and ninepence by the creation and issue of ordinary and preference shares and stock and have raised by the creation and issue of debenture stock sums amounting in the aggregate to fifty-four thousand seven hundred and forty pounds :

And whereas it is expedient that the amount which the Company are authorised to borrow under the before-mentioned Acts should be increased :

And whereas the Company have for the purposes of the undertaking acquired certain works of water supply and have constructed a certain conduit or line or lines of pipes hereinafter respectively described and it is expedient that the acquisition and construction of such works and the acquisition by the Company of lands

and easements for the same should be sanctioned and confirmed : A.D. 1923.

And whereas it is expedient that the agreement set forth in the schedule to this Act between the Company of the one part and the West Ashford Rural District Council of the other part providing for the cancellation upon certain terms and conditions of an agreement dated the fourth day of February one thousand nine hundred and fourteen and made between the same parties should be confirmed and made binding upon the parties thereto :

And whereas it is expedient that such further provisions should be made and that such further powers should be conferred upon the Company as are in this Act contained :

And whereas plans and sections of the new works authorised by this Act showing the lines and levels thereof and a book of reference to the plans containing the names of the owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Kent and those plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the Mid Kent Water Act 1923 and the Mid Kent Water Acts and Orders 1898 to 1920 and this Act may be cited together and are in this Act referred to as the Mid Kent Water Acts and Orders 1898 to 1923 and the Act of 1898 the Mid Kent Water Act 1900 so much of the Act of 1913 as relates to the Company or their undertaking and each of the Mid Kent Water Orders 1901 1902 1903 1906

Short and
collective
titles.

A.D. 1923. — and 1907 and the Order of 1920 is hereinafter referred to separately as the Act or Order of the year in which the same or the Act confirming the same as the case may be was passed.

Incorporation of general Acts.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

- (1) The Waterworks Clauses Acts 1847 and 1863 (except the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847):
- (2) The Lands Clauses Acts Provided always that any question of disputed compensation under this Act or any Act incorporated therewith (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Company and the person claiming the compensation or in default of such agreement appointed by the Minister of Health on the application of either party:
- (3) Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:
- (4) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and for the purposes of this Act such provisions shall have effect as if the pumping station by this Act authorised and so much of any conduits or lines of pipes by this Act authorised as will not be constructed in a highway were respectively referred to in lieu of “the railway” and as if the outside of the pumping station and the centre lines of so much of any conduits or lines of pipes as aforesaid were respectively referred to in lieu of “the centre of the railway.”

Interpretation.

3. In this Act unless there be something in the subject or context repugnant to such construction

the several words and expressions to which by the Acts in whole or in part incorporated with this Act meanings are assigned have the same respective meanings And—

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The expression “ the Company ” means the Mid Kent Water Company :

The expression “ the East Kent Company ” means the East Kent District Water Company :

The expression “ the limits of supply ” means the limits for the time being of the Company for the supply of water :

° The expression “ the undertaking ” means the undertaking for the time being of the Company authorised by the Mid Kent Water Acts 1898 to 1923 :

The expression “ the existing waterworks ” means the existing works of the Company described in the section of this Act the marginal note whereof is “ Confirming acquisition and construction of existing works ” :

The expression “ the new waterworks ” means the new works described in the section of this Act the marginal note whereof is “ Power to make new works ” :

The expression “ the directors ” means the directors of the Company.

WORKS AND LANDS.

4. The acquisition and construction by the Company of the existing waterworks next hereinafter described together with all incidental and ancillary pipes filters works and apparatus are hereby sanctioned and confirmed and the Company may maintain and alter improve enlarge extend renew reconstruct or discontinue all or any of the same and may retain hold and use as part of and for the purposes of the undertaking all or any of the lands or any interests in the lands in this section described which have been already acquired by the Company for the purposes of or in connection with the undertaking or the said works or any of them and the expenditure of capital by the Company for the purposes of the said works and in the acquisition of the said lands and interests is hereby sanctioned and confirmed.

Confirming
acquisition
and con-
struction
of existing
works.

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The existing waterworks and lands hereinbefore referred to are situate wholly in the county of Kent and are :—

Work No. 1 A spring and covered spring chamber and other works and conveniences (known as the “ Linton Village Waterworks ” and formerly the property of Fiennes Stanley Wykeham Cornwallis and acquired from him by the Company) situate wholly in the parish of Linton in the rural district of Maidstone constructed in and upon land now belonging to the Company comprising two roods or thereabouts and forming part of the enclosures numbered 54 and 55 on the $\frac{1}{2500}$ Ordnance map (revised edition 1896) of the said parish of Linton.

Work No. 2 A conduit or line or lines of pipes situate in the parish of Halling in the rural district of Strood and the parish of Wouldham (otherwise Woldham) in the rural district of Malling constructed by the Company in or upon the banks foreshore and bed of the River Medway commencing at a point at the river end of Ferry Road Halling by a junction with the existing main of the Company leading from Snodland to Halling and terminating at a point on the foreshore next the right bank of the said river one chain or thereabouts measured in a north-easterly direction from the Halling Ferry steps by a junction with the existing main of the Company leading thence to Wouldham and Burham.

Power to
make new
works.

5. Subject to the provisions of this Act the Company may in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections make and maintain the new waterworks hereinafter described wholly in the county of Kent (that is to say) :—

Work No. 3 A pumping station together with a well or wells bores and other works and conveniences (to be called “ the Trosley pumping station ”) to be situate wholly in the parish of Trottiscliffe (otherwise Trosley) in the rural district

of Malling in or upon land being the enclosure numbered 107 on the $\frac{1}{2500}$ Ordnance map (revised edition 1907) of the said parish of Trottiscliffe: A.D. 1923.
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Work No. 4 A conduit or line or lines of pipes to be situate wholly in the parish of Trottiscliffe (otherwise Trosley) in the rural district of Malling commencing in the intended Trosley pumping station (Work No. 3) hereinbefore described and terminating in the public road leading from Trottiscliffe to Mereworth at or near the western boundary of the said enclosure numbered 107 on the $\frac{1}{2500}$ Ordnance map (revised edition 1907) of the said parish of Trottiscliffe by a junction with the existing conduit or line or lines of pipes of the Company and being Work No. 3 confirmed by and described in the Act of 1913:

Work No. 5 A conduit or line or lines of pipes situate wholly in the parish of Wouldham (otherwise Woldham) in the rural district of Malling and to be constructed partly upon the foreshore and on the right bank of the river Medway and partly in or upon land forming part of the enclosures numbered 89 and 90 on the $\frac{1}{2500}$ Ordnance map (revised edition 1906) of the said parish of Wouldham commencing by a junction with the existing conduit or line or lines of pipes of the Company (Work No. 2) hereinbefore described at a point upon such foreshore one chain or thereabouts measured in a north-easterly direction from the Halling Ferry steps at the corner of the said enclosure and terminating by a junction with the existing conduit or line or lines of pipes of the Company leading from Halling to Wouldham where the same is laid in or under the footpath leading from Halling Ferry steps to Wouldham at a point two chains or thereabouts measured along the said footpath from the said ferry steps.

In addition to the foregoing works the Company may upon the said lands make and maintain all such buildings machinery works and apparatus of whatsoever character as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any of them but nothing in this section shall exonerate the

A.D. 1923. — Company from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. Provided always that the Company shall not commence to construct Work No. 3 in this section described until they shall have acquired the whole of the lands numbered on the deposited plans 1 in the parish of Trottisccliffe (otherwise Trosley) in the rural district of Malling.

Limits of
deviation.

6. In the construction of the new waterworks the Company may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding three feet upwards and to any extent downwards. Provided that except for the purposes of crossing over a stream dyke or watercourse no part of the conduits or line or lines of pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Works to
form part
of under-
taking.

7. Subject to the provisions of this Act all works thereby sanctioned confirmed or authorised and the lands thereby authorised to be held retained or acquired shall for all purposes whatsoever form part of and be comprised in the undertaking.

Power to
take waters.

8. Subject to the provisions of this Act the Company may pump collect impound take use divert and appropriate for the purposes of the undertaking all streams springs and waters which will or may be intercepted by means of the Works Nos. 1 and 3 by this Act sanctioned confirmed or authorised or any subsidiary works by this Act authorised in connection therewith.

Period for
completion
of works.

9. If the new waterworks are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making of the said waterworks or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed but nothing in this section contained shall restrict the Company from at any time extending enlarging altering renewing or removing any of the new waterworks or

from exercising any of the powers with respect to the construction of works conferred by the Acts incorporated with this Act from time to time as occasion may require.

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Provided that no extension enlargement or alteration of any of the new waterworks which affects the bed soil or banks of the River Medway shall be executed without the reasonable approval of the conservators of that river.

10.—(1) If at any time after the completion of the pumping station authorised by this Act it shall be proved by the owner of any well which is situate within a radius of one mile from the said pumping station and which is used at the passing of this Act as an effective source of supply (in this section called "the owner") that the pumping by the Company at that station has caused a diminution or cesser of the supply of water in such well the Company shall upon the written request of such owner afford to him a supply of water equal to the amount of such diminution or to the supply which shall have ceased (as proved) at such cost or rate (if any) as that the total cost of the owner of obtaining his full supply shall not be more after than before the construction of the said pumping station and upon such other terms as may be agreed or failing agreement may be settled by arbitration as hereinafter provided.

For protection of existing wells.

(2) Provided that—

- (a) The Company shall not be under any obligation to give a supply of water for domestic purposes under this section in respect of any well the water from which is or was before the cesser of supply so polluted as to be or to be likely to be injurious or dangerous to health;
- (b) The Company shall not be liable in respect of any claim made by the owner under this section if such owner shall have failed to afford the Company and their officers servants and other representatives at all reasonable times after the passing of this Act access to the well in respect of which the claim is made and facilities for ascertaining particulars thereof and the level and quantity of the water therein;

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(c) The Company shall not be subject to the obligations of this section if prevented from supplying water thereunder in consequence of frost unusual drought or other unavoidable cause or accident.

(3) All mains pipes meters and fittings required for the purpose of supplying water to any owner in pursuance of this section shall be provided laid down and fixed and all such mains pipes and meters shall be maintained by and at the expense of the Company and the owner shall afford to the Company all reasonable or necessary facilities for these purposes but all such fittings which shall be placed or fixed upon the land or premises of any owner shall be repaired maintained and (when necessary) renewed and made good by such owner to the satisfaction of the Company.

(4) The Company may if they think fit in lieu of affording a supply of water equal to the diminution of the supply or the supply which shall have ceased as aforesaid in any such well deepen such well or make such borings therein or headings therefrom as will increase the supply so as to make good the said diminution or cesser and the owner shall without making any charge therefor give the Company access and every facility for carrying out such deepening borings or headings.

(5) The Company may if they think fit in lieu of affording a supply equal to the diminution or the supply which shall have ceased as aforesaid make compensation in money to any such owner for such diminution or cesser of supply and they shall also make like compensation for any injury caused to such owner by the powers conferred by the last preceding subsection and the amount of such compensation shall be settled in case of difference by arbitration as hereinafter provided.

(6) Any question which may arise between the Company and any owner as to the quantity time place or manner of the supply to be afforded by the Company in pursuance of this section and any other question dispute or difference which may arise between the Company and the owner under the foregoing provisions of this section shall be referred to the arbitration of a single arbitrator appointed unless otherwise agreed by the President of

the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration. A.D. 1923.
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(7) The Company and the owner may enter into and fulfil agreements with reference to the supply of water by the Company to such owner or with reference to any matter referred to in this section and may by any such agreement alter or modify any of the provisions of this section so far as they relate to such owner.

(8) In this section the expression “owner” shall include any lessee or occupier.

11. The Company may exercise as regards the portions of roads in the parish of Willesborough in the rural district of East Ashford in the county of Kent hereinafter described which are beyond the limits of supply the powers conferred upon them by the Waterworks Clauses Act 1847 with reference to the breaking up of streets for the purpose of laying pipes as if such portions of the said roads were within the limits of supply but nothing in this section shall authorise the Company to supply water beyond the limits of supply The portions of roads hereinbefore referred to are :—

Power to
lay mains
beyond
limits of
supply.

So much of the road which connects the main road from Ashford to Canterbury with the main road from Ashford to Hythe and which leads from Spear Point Corner to Willesborough as lies between the bridge over the river Great Stour near Conningbrook and the junction of the said road with the main road from Ashford to Hythe and so much of the main road from Ashford to Hythe as lies between such last-mentioned junction and the junction of the said main road with the road leading to Sevington near Ransley Cottage.

12. Subject to the provisions of this Act the Company may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the new waterworks.

Power to
acquire
lands.

13. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for
compulsory
purchase of
lands.

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Private
rights of
way over
lands taken
compul-
sorily.

14. All private rights of way over any lands which may be acquired compulsorily under the powers of this Act shall as from the date of the acquisition of such lands be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Application
of provisions
of Acts of
1898 and
1913.

15. The provisions of the following sections of the Acts of 1898 and 1913 shall extend and apply so as to enable the Company to exercise the powers of those sections respectively in relation to all or any of the existing waterworks or the new waterworks and to all or any of the lands the purchase or holding of which is by this Act authorised (namely):—

The Act of 1898—

Section 59 (Company may lease &c. spare lands of undertaking Reservation of water rights on sale).

The Act of 1913—

Section 12 (Power to acquire easements only in certain cases):

Section 19 (Persons under disability may grant easements):

Section 20 (Discharge of water into streams):

Section 21 (Power to agree as to drainage of lands):

Section 22 (Power to hold lands for protection of waterworks).

Purchase of
additional
lands by
agreement.

16. The Company may in addition to any other lands now belonging to them or which they are by this Act authorised to purchase compulsorily purchase take on lease or acquire by agreement and hold any lands not exceeding in the whole ten acres and may on all or any of such additional lands execute for the purposes of, or in connection with their waterworks any of the works (other than wells and works for taking or intercepting water) and exercise any of the powers mentioned in or conferred by section 12 of the Waterworks Clauses Act 1847 and the Company may also purchase by agreement any easement right or privilege (not being an easement

right or privilege of water in which persons other than the grantors have an interest) in under or over such additional lands which they may think requisite. Provided that so long as any lands acquired by or leased to the Company under this section are held by them the Company shall not on any such lands cause or permit a nuisance or erect or authorise or permit the erection of any buildings other than offices and dwellings for persons in their employ and buildings connected with or necessary for the undertaking.

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17. The period limited by section 15 (Period for completion of new works) of the Act of 1913 as extended by section 11 of the Order of 1920 for the completion of such of the works authorised by that Act to be constructed by the Company as have not been completed at the passing of this Act is hereby further extended until the fifteenth day of August one thousand nine hundred and thirty-one.

Extension
of period
limited for
construction
of works
under Act
of 1913.

18. For the protection of the conservators of the River Medway (in this section referred to as "the conservators") the following provisions shall unless otherwise agreed in writing between the Company and the conservators apply and have effect (that is to say):—

For protec-
tion of con-
servators
of River
Medway.

- (1) The Company shall not commence the construction of so much of Work No. 5 described in the section of this Act the marginal note of which is "Power to make new works" as will be constructed in or upon the shores or banks of the River Medway or in any way interfere with the bed soil shores or banks of the said river until they shall have given to the conservators twenty-one days' notice in writing of their intention to commence the same with proper plans and details showing the mode in which it is intended to construct the work and until the said conservators shall have signified their approval of the same. Provided that such approval shall not be unreasonably withheld. Provided also that if the conservators shall fail to signify such approval or their disapproval within twenty-one days after service of the said notice and delivery of the said plans and details as aforesaid they shall be deemed to have approved thereof:

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- (2) The Company shall comply with and conform to all reasonable directions and regulations of the conservators in the execution maintenance and any necessary renewal or alteration of so much of the said work as aforesaid and of any work (whether principal or subsidiary) by this Act sanctioned confirmed or authorised which affects the bed soil shores or banks of the River Medway and shall save harmless the conservators against all and every expense occasioned thereby:
- (3) Nothing in this Act shall prejudice or affect the right of the conservators at any time or times to widen deepen or improve the said river either by removing parts of the point of land on the Wouldham side of the said river at or near the point where Work No. 2 by this Act sanctioned and confirmed and Work No. 5 by this Act authorised are or will be respectively situate or otherwise in the same manner as the conservators might have widened deepened or improved the same if this Act had not been passed and the said works or any works matters or things subsidiary to or connected with the same and affecting the bed soil shores or banks of the said river had not been constructed In the event of the said river being widened deepened or improved in such manner as to require the alteration of the position (either temporary or permanent) of the said works or either of them or any part thereof or of any works matters or things subsidiary to or connected therewith the Company shall at their own cost as and when requested by the conservators by not less than two months' notice in writing alter the position of the same to the reasonable satisfaction of the conservators Provided that as well during any such widening deepening or improvement of the said river as aforesaid as after the same shall have been completed the conservators shall afford to the Company all reasonable facilities for carrying the said works across the said river so as not to interrupt the continuous supply of water by means of the same or diminish the pressure of

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- such supply and that in the event of any permanent alteration of the position of the said works or either of them or any part thereof or of any works matters or things subsidiary to or connected therewith being required the conservators shall afford to the Company all reasonable facilities for the purpose of enabling the Company to relay construct and maintain the same in their altered position in upon or under any lands of the conservators Provided also that nothing in this section shall authorise any alteration of the position of the said Work No. 5 so that the same or any part thereof shall be outside the parish of Wouldham :
- (4) The Company shall pay to the conservators on the twenty-ninth day of September in each year commencing in the year one thousand nine hundred and twenty-three the acknowledgment rent of five pounds in respect of so much of the said Works Nos. 2 and 5 as shall be maintained or constructed in upon or under the bed soil shores or banks of the said river either in their original or any altered position :
- (5) The provisions of this Act so far as the same relate or apply to the said Works Nos. 2 and 5 or any works matters or things subsidiary to or connected with the same and affecting the bed soil shores or banks of the said river shall not extend so as to permit the maintenance of the same or any of them in the position in which they respectively have been or shall be constructed if the same shall become an impediment obstruction danger or nuisance to or interference with the navigation of the said river or a danger to the shores or banks thereof :
- (6) The Company shall indemnify and keep indemnified the conservators against all losses costs damages and expenses which may at any time arise or be occasioned by reason or on account of any interference with navigation or damage to craft arising or being occasioned by reason or on account of the maintenance or construction in either their original or any altered position of the said Works Nos. 2 and 5 in upon or under the bed soil shores or banks of the said river :

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- (7) The owners and masters of vessels shall not be liable to make good any damage which may be caused to any temporary works of the Company erected or placed in upon or under the bed soil shores or banks of the said river except such as may arise from the wilful act or default of such owners or masters or their servants or agents :
- (8) All works executed by the Company under the provisions of this Act affecting the bed soil shores or banks of the said river shall be executed to the reasonable satisfaction of the harbour-master or the officer or officers of the conservators at the costs charges and expenses in all respects of the Company :
- (9) All reasonable costs charges and expenses to which the conservators may be put in connection with the provisions for their protection hereinbefore contained shall be paid to them by the Company on demand and in case of default may be recovered by the conservators as an ordinary simple contract debt of the like amount is recoverable :
- (10) Except so far as is expressly provided by this Act nothing in this Act contained shall extend to take away lessen prejudice diminish affect or alter any of the estates rights interests privileges liberties powers or authorities vested in or enjoyed or exerciseable by the conservators under the Medway Conservancy Act 1881 or otherwise.

For pro-
tection of
Kent
County
Council.

19. The provisions of section 40 (For protection of Kent County Council) of the Act of 1913 shall with any necessary modifications extend and enure for the protection of the Kent County Council in relation to the execution of the works authorised by this Act so far as they affect any main road or any county or main road bridge as if the same had been re-enacted in this Act.

For pro-
tection of
East
Ashford
Rural
District
Council.

20. For the protection of the East Ashford Rural District Council (in this section referred to as "the council") the following provisions shall unless otherwise agreed between the Company and the council apply and have effect (that is to say):—

- (1) The Company shall upon receiving notice in writing from the council in that behalf (such

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- (5) The provisions of subsections (1) and (4) of section 11 (For the protection of the East Ashford Rural District Council) of the Act of 1900 shall apply mutatis mutandis to any works constructed by the Company under the authority of this Act within the district of the council and the provisions of subsection (7) of that section shall apply to any difference arising between the Company and the council under this section as if the same were re-enacted in this Act.

SUPPLY OF WATER.

Amend-
ment of
section 35
of Water-
works
Clauses
Act 1847.

21. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Company be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-seventh part of such expense.

Interference
with valves
pipes and
fittings.

22. Every person who shall wilfully (without the consent of the Company) or negligently close or shut off any valve cock or other work or apparatus belonging to the Company and thereby cause interference with the supply of water shall (without prejudice to any other right or remedy of the Company) be liable to a penalty not exceeding five pounds and the court which imposes any such penalty may in addition thereto order any such person to pay to the Company the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

Fittings on
hire to
remain
property of
Company.

23. All engines meters fittings apparatus and appliances (in this section referred to as "fittings") let by the Company on hire or under hire purchase agreements under any statutory powers shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof. Provided also that nothing in this section

notice not to be given after the expiration of five years from the passing of this Act) forthwith commence to lay down within the district of the council and shall with all practicable speed complete and thereafter maintain the lines of pipes hereinafter described or such one or more of the said lines of pipes as may be specified in such notice (that is to say):—

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From Spear Point Corner in the Parish of Kennington to Mersham via Willesborough from Mersham to Smeeth and Brabourne Lees from Mersham to Ham Street via Bromley Green and to Bilsington and Bonnington :

- (2) The Company shall forthwith after the completion of the laying down of the said lines of pipes specified in such notice afford a supply of water to the inhabitants by means thereof :
- (3) If in any year after the commencement of such supply and prior to such date as may have been or may hereafter be agreed between the Company and the council the revenue received by the Company for the supply of water from the lines of pipes specified in any such notice as aforesaid and laid down by the Company shall not amount to such a sum or sums as may have been or may hereafter be agreed between the Company and the council the council shall pay to the Company the amount as certified by the Company's auditors by which the said sum or sums so agreed shall exceed the amount of such revenue :
- (4) After the giving of any notice by the council under subsection (1) of this section the council shall notwithstanding anything contained in subsection (2) of section 44 of the Act of 1913 provide a supply of water in exercise of their powers in that behalf under the Public Health Act 1875 or otherwise in any of the parishes specified in that subsection in which the lines of pipes specified in the said notice will be thereby required to be laid :

shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed. A.D. 1923.
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24. If in the opinion of the Company any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any defect in any communication pipe it shall be lawful for the Company to repair the same as they may think expedient without being requested so to do and if any such defect in the communication pipe shall have been found the expenses incurred by the Company in or in connection with such repair shall be recoverable by the Company from the owner of the premises supplied by such pipe or in cases where the pipe is repairable by the occupier of such premises from the occupier in like manner as the water rates in respect of the premises are recoverable. For pre-
vention of
waste of
water.
Provided that except in case of emergency the Company shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours previous notice of their intention so to do.

25.—(1) Any urban or rural district council whose district is in whole or in part within the limits of supply may give and enter into any guarantee or contract for securing payment to the Company of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Company for the purpose of or with respect to the providing or laying down by the Company of any main pipe or works for the supply of water within any part of such district. Guarantees
by district
councils.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Company under this section.

(3) Nothing in this section shall be deemed to authorise any such urban or rural district council to use any

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water supplied by the Company under any such guarantee or contract as aforesaid in any part of the district of such council which is beyond the limits of supply and within the limits for the supply of water of any other authority supplying water under parliamentary authority without the consent of such other authority.

Power to
local autho-
rities to
guarantee
on behalf
of owners
and
occupiers.

26. Any requisition which may be made under section 35 of the Waterworks Clauses Act 1847 by owners or occupiers of houses requiring a supply of water may be made by the local authority of the district on behalf of such owners or occupiers and shall be binding on the Company if the local authority execute an agreement binding themselves to pay for three successive years at least for the supply of water to the houses in respect of which the requisition was made the amount which would have been payable under the said section as amended by this Act by such owners or occupiers.

Purchase
of water
in bulk.

27. The Company may enter into and carry into effect agreements with any water authority company body or person supplying water under parliamentary authority for the purchase of water in bulk by the Company for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Company for the purposes of the undertaking.

FINANCIAL PROVISIONS.

Borrowing
in respect of
authorised
capital.

28. The provisions of the Act of 1898 the Act of 1900 the Orders of 1906 and 1907 the Act of 1913 and the Order of 1920 relating to the borrowing or raising of moneys on mortgage of the undertaking of the Company or by the creation and issue of debenture stock shall be read and construed as if the Company were by those Acts and Orders authorised to borrow on mortgage of the undertaking or to raise by the creation and issue of debenture stock an amount equal to one-half part of the moneys which at the time of such borrowing or of the issue of the debenture stock has been raised by the Company by the creation and issue of ordinary and preference shares or stock under the powers of those Acts or Orders or any of them.

29—(1) The Company may create and issue all or any of the preference shares or stock which they are authorised by the Mid Kent Water Acts and Orders 1898 to 1920 or any of them to create and issue and may create and issue all or any debenture stock which they are by those Acts or any of them authorised to create and issue so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed at a special meeting convened for the purpose.

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Issue of
redeemable
preference
capital and
debenture
stock.

(2) If it is so provided in the resolution the Company may—

(a) Call in and pay off the shares or stock or any part thereof at any time before the fixed date of redemption; and

(b) Redeem the shares or stock or any part thereof either by paying off the same or by issuing to any stockholder subject to his consent other shares or stock in substitution therefor and may for the purpose of providing money for paying off the shares or stock or of providing substituted shares or stock create and issue new shares or stock (either redeemable or irredeemable) or re-issue shares or stock originally created and issued under this section. Provided that the creation and re-issue for the purpose of any particular class of shares or stock does not make the total nominal amount of such shares or stock exceed the amount of that class of shares or stock which the Company are for the time being authorised to create save so far as such creation and re-issue is for the purpose of paying off shares or stock created and issued under the provisions of this section or of providing shares or stock substituted for the same thereunder.

3) The Company shall not redeem out of revenue any preference shares or stock or debenture stock created under this section.

(4) Section 19 of the Order of 1906 section 19 of the Order of 1907 and section 65 of the Act of 1913 (Preference shares or stock may be issued subject to redemption) are hereby repealed.

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Appoint-
ment of
receiver.

30. Section 62 (Appointment of receiver) of the Act of 1913 as amended by section 9 (Additional capital and borrowing powers) of the Order of 1920 is hereby repealed so far as it relates to the Company but without prejudice to any appointment which may have been made or to the continuance of any proceedings pending at the passing of this Act under such provisions. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than eight thousand pounds in the whole.

Power to
apply funds.

31. The Company may apply to any of the purposes of this Act to which capital is properly applicable any sums of money which the Company have already raised or are authorised to raise under the *Mid Kent Water Acts and Orders 1898 to 1920* as amended by this Act or which may be under their control and which are not required for the purposes to which they are by the said Acts or Orders or this Act made specially applicable.

MISCELLANEOUS.

Scheduled
agreement
confirmed.

32. The agreement made the twenty-ninth day of June one thousand nine hundred and twenty-three between the Company of the one part and the West Ashford Rural District Council of the other part set forth in the schedule to this Act is hereby confirmed and made binding upon the parties thereto.

Power to
make super-
annuation
and other
allowances.

33. It shall be lawful for the Company to make superannuation and other allowances and to pay pensions or gratuities to any officers servants or employees of the Company and for that purpose to apply the funds and revenues of the Company.

Power to
directors
to make
donations
&c.

34. The directors may subscribe or make donations to infirmaries or hospitals and to convalescent homes and similar institutions and to the benevolent and sick funds of the employees of the Company and may for any of those purposes apply the funds and revenues of the Company.

35. The Company may at any time and from time to time appoint any firm to be the auditors of the Company. The auditors or in the case of a firm being so appointed as auditors the members of such firm shall be persons who are members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or who are accountants approved by the Board of Trade and the auditors need not hold stock of the Company but nothing in this section shall prevent any person who at the date of the passing of this Act is an auditor of the Company continuing to act as such auditor. If and so long as a firm appointed under the provisions of this section are the auditors of the Company the provisions of any Act incorporated with this Act relating to the prescribed number of auditors shall not apply to the Company.

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Auditors.

36. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the auditors of the Company.

Power to
determine
remunera-
tion of
auditors.

37. From and after the passing of this Act no person not being a retiring director of the Company shall be eligible to be elected at any general meeting of the Company a director of the Company unless notice in writing is given to the secretary or left at the principal office of the Company fourteen days at least before the day of election that such person will be proposed for election as a director of the Company and the secretary of the Company shall during such fourteen days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office. Any such person must have been the holder of the qualifying amount of stock for at least three months prior to his election. In the case of a retiring director or directors notice of opposition to his or their re-election shall be given in like manner.

Notice of
candidature
of or
opposition
to re-elec-
tion of
director.

38. All offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable thereunder may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recoverable as penalties but may be recovered summarily as civil debts.

Recovery
of penalties
&c.

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Recovery of
demands.

39. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Penalties
not
cumulative.

40. Penalties imposed under this Act or the Acts wholly or in part incorporated therewith for one and the same offence shall not be cumulative.

Costs of
Act.

41. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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A.D. 1923. — and annulled and the Company shall be released from all obligation to make any payments thereunder to the Council.

2. The Company shall upon being required so to do by the Council by notice in writing given at any time after the thirtieth day of September one thousand nine hundred and twenty-three pay to the Council within three months after the receipt of such notice the sum of one thousand nine hundred pounds.

3. Upon the thirtieth day of June one thousand nine hundred and twenty-four and upon every subsequent thirtieth day of June prior to the payment of the said sum of one thousand nine hundred pounds under clause 2 hereof the Company shall pay to the Council the sum of ninety-five pounds. The Company shall also pay to the Council in respect of any period between the thirtieth day of June next preceding the date of the payment of the said sum of one thousand nine hundred pounds and the date of such payment a sum which shall bear the same proportion to the sum of ninety-five pounds as such period shall bear to one year.

4. This agreement is subject to such alteration as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein either party may withdraw therefrom.

In witness whereof the Company and the Council have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Mid Kent Water
Company was hereunto affixed in the
presence of

L.S.

F. L. BALL
ERNEST PACKHAM } Directors.
L. HOLMAN Secretary.

The seal of the West Ashford Rural District
Council was hereunto affixed in the
presence of

L.S.

A. BROWN Chairman.
J. M. PONCIA Clerk.

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